

Guinea, Liberia and Sierra Leone

A human rights crisis for refugees and the internally displaced

**"One of the most serious humanitarian and political crises
facing the international community today"**

United Nations (UN) Secretary-General Kofi Annan, 23 May 2001(1)

The situation for refugees and internally displaced people in Guinea, Liberia and Sierra Leone is a human rights crisis. Thousands of civilians, including large numbers of refugees and internally displaced people, have suffered serious human rights abuses, particularly since September 2000 when incursions by armed political groups resulted in fighting along the borders between the three countries.

In Guinea, Sierra Leonean refugees and Guinean civilians have been killed, beaten, raped and abducted by armed political groups, including the Revolutionary United Front (RUF) in cross-border attacks from Sierra Leone. Liberian and Sierra Leonean refugees have been killed, tortured, ill-treated, arbitrarily arrested and intimidated by Guinean security forces and harassed by Guinean civilians. More than 80,000 Liberian refugees in Guinea are in urgent need of protection and humanitarian assistance and others fleeing ongoing fighting in northern Liberia are being prevented by Guinean security forces from entering Guinea. Hundreds of thousands of refugees and as many as 300,000 Guineans have been displaced within Guinea as a result of the violence.

In Lofa County, northern Liberia, scores of civilians suspected of backing armed political groups have been arrested, tortured and extrajudicially executed by the Liberian security forces. Others have reportedly been abducted or killed by Liberian armed political groups. Women and girls have reportedly been raped by both sides. As a result of increased fighting since February 2001, around 40,000 civilians have been internally displaced. Humanitarian agencies have frequently been denied access to them or threatened and intimidated by the security forces while assisting them. **In some cases, displaced people have been prevented from fleeing to safer areas by the security forces on suspicion that dissidents were among them.** Liberian security forces have reportedly continued to recruit child soldiers including from among the displaced.

Thousands of Sierra Leonean refugees, an unknown number of Guinean civilians and several thousand Liberian civilians have fled from Guinea and Liberia into RUF-held areas of Sierra Leone. There they have faced further abuses, including rape and abduction, by RUF forces and some have been prevented from moving on to safer areas within Sierra Leone. Military attacks on RUF-held territory in northern Sierra Leone by Guinean security forces have been indiscriminate and disproportionate. They have resulted in large numbers of civilian casualties, massive destruction of civilian property and the displacement of some 30,000 civilians from these areas.

Between February and April 2001, Amnesty International delegations visited Guinea, Liberia and Sierra Leone to interview refugees and internally displaced

people. They gathered detailed information which shows the horrifying extent to which these people have been subjected to serious human rights abuses. This report provides an overview of the delegations' findings together with information on human rights abuses obtained subsequently and on the context in which these abuses are taking place. It concludes with recommendations for immediate action to be taken by governments, armed political groups and the international community. It should be read in conjunction with other Amnesty International documents, including: *Guinea: Refugees must not be forced to choose between death in Sierra Leone or death in Guinea*, 5 April 2001 (AI Index: AFR 29/003/2001); *Liberia: War in Lofa County does not justify killing, torture and abduction*, 1 May 2001 (AI Index: AFR 34/003/2001); *Guinea and Sierra Leone border: fighting continues to endanger civilian lives*, 4 May 2001 (AI Index: AFR 51/004/2001). Amnesty International will also publish a further report including detailed case studies.

Guinea

During the last decade, Guinea was a place of safety and refuge for hundreds of thousands of Liberians and Sierra Leoneans who had fled protracted armed conflicts in their own countries. Since September 2000 it has become a place of violence, death and fear.

In March 2001 Amnesty International delegates interviewed refugees, mostly Sierra Leoneans, who had fled within Guinea after attacks by armed political groups on the Guinean towns of Pamélap, Macenta, Katkama, Guéckédou and Nongoa, and on villages and refugee camps. Those interviewed referred most frequently to the RUF; however, Guinean and Liberian armed political groups are also reported to be active in southern Guinea. In areas bordering Sierra Leone - the southeastern Forest region, especially an area known as the Parrot's Beak, and the southwestern Forécariah region - refugee camps have been attacked by armed political groups, in particular the RUF. Although the exact number is not known, hundreds of Sierra Leonean refugees have been killed, beaten, raped and abducted during attacks. There are also reports that the RUF has forcibly recruited refugees in these camps to fight against Guinean security forces. Many have fled from one camp to another, in attempts to escape the violence and, in desperation, at least 20,000 Sierra Leoneans have crossed the border overland into RUF-held areas of Sierra Leone.

Guinean civilians have suffered similar grave abuses during attacks by armed political groups. Towns and villages in southern Guinea have been occupied or have been the sites of protracted fighting between these groups and Guinean security forces. This has forced tens of thousands of Guineans, perhaps as many as 300,000 at one point, to flee their homes in search of safety. Most remain internally displaced within Guinea and in need of protection and humanitarian assistance.

In a radio broadcast on 9 September 2000, Guinean President Lansana Conté accused refugees of supporting or assisting armed political groups from their own countries. This came two days before the conviction and sentencing of political opposition leader and prisoner of conscience Alpha Condé, imprisoned since December 1998 and accused by President Conté of having instigated fighting on the borders. Amnesty International and others, including human rights defenders in Guinea, protested at his unfair trial and conviction. Amnesty International welcomes the release of Alpha Condé on 18 May 2001 following a presidential pardon, after serving half of a five-year prison sentence.

After President Conté's radio broadcast, many Guinean civilians turned against refugees and harassed and intimidated them. Refugee camps, after being attacked and abandoned, have often been burned by local civilians so as to prevent their occupants returning. Liberian and Sierra Leonean refugees have been singled out for killings, arbitrary arrests, torture and ill-treatment by the Guinean security forces. At military checkpoints and elsewhere, Guinean security forces have obstructed, intimidated and threatened refugees as they tried to move away from border areas or return to their own country. In one incident in early October 2000, a helicopter gun-ship flew low over a refugee camp in Kalia, Forécariah region, and fired artillery close to the camp, which resulted in civilian deaths and injuries; this appeared to be a deliberate attempt by the Guinean security forces to terrorize refugees and force them to flee the camp.

Refugees from Sierra Leone have been arbitrarily detained, often in large groups, and accused of being members or supporters of the RUF. Amnesty International delegates interviewed many refugees who were arrested solely because they bore marks or scarring on their bodies which were assumed by the Guinean security forces to be indications of involvement with the RUF. In most cases described to Amnesty International, individuals were able to secure their release after several hours or days by paying a bribe to the security forces. In other cases, however, those arrested were reported to have died in detention, apparently as a result of torture or ill-treatment, or their fate remained unknown.

The Office of the UN High Commissioner for Refugees (UNHCR) has stated that it is caring for over 80,000 Liberian refugees in Guinea, mostly around Nzérékoré in the southeast, near the Liberian border. By June 2001 UNHCR was reportedly expecting to have relocated at least 25,000 of them away from the border areas to safer areas of the country, but this has not yet taken place. Waiting for relocation, these refugees have neither planted and stored food, nor prepared their homes for the rainy season which has now begun. Little information is available about Liberian refugees in the area around Macenta, also in the southeast near the Liberian border. There has been little or no international presence there since the killing of a UNHCR official in September 2000. However, there have been reports that an unknown number of refugees are still in the area in need of assistance and protection including from recruitment by Liberian armed political groups. On 9 May 2001 a non-governmental organization Refugees International, following a visit to southern Guinea, described the conditions for Liberian refugees there as "unacceptable". It warned that the refugees are in urgent need of materials for shelters, food rations and protection from the fighting spilling over from northern Liberia.

Furthermore, hundreds of Liberian refugees fleeing human rights abuses and fighting in northern Liberia are reported to be prevented from crossing into Guinea by Guinean security forces at the border. It appears that only those who have the means to pay border guards are able to enter the country. UNHCR has raised concerns about this, both publicly and with the Guinean authorities, but the border is reported to remain closed.

In Guinea, the location of refugee camps close to the borders with Liberia and Sierra Leone has attracted cross-border raids by armed political groups. Concerns that the camps have provided bases for these groups have been raised by humanitarian agencies over the years. However, many refugees and the Guinean authorities were reportedly opposed to relocating camps in Guinea further from the borders. Some efforts were made in 1999 to relocate refugees, but only since September 2000 has relocation been considered urgent. By early June 2001 UNHCR had completed the voluntary relocation of around 57,000 refugees from the Parrot's

Beak area away from the border. Amnesty International welcomes this relocation. There is still an urgent need, however, to relocate Liberian refugees in the areas around Macenta and Nzérékoré to safe areas.

Liberia

Human rights abuses in Liberia have dramatically increased since 1999 when Liberian armed political groups based in Guinea, believed to be backed by Guinean security forces, began incursions into Lofa County, northern Liberia. Diplomatic relations between Liberia and neighbouring Guinea and Sierra Leone progressively deteriorated. The Amnesty International delegation that visited Liberia in February 2001 found that scores of civilians suspected of supporting or collaborating with dissidents have been arrested, tortured and extrajudicially executed by Liberian security forces. It appears that women and girls have been raped by both government forces and armed political groups, although the identity of those responsible has often been difficult to establish. Civilians are reported to have been abducted by armed political groups. Some have been killed while trying to escape abduction. In an attempt to prevent sensitive information getting out of Liberia, especially about human rights abuses, critics and opponents of the government have frequently been labelled as "dissidents" by the authorities and have increasingly been subjected to verbal and physical attacks by the security forces.

Since February 2001 fighting in Lofa County has further intensified and Amnesty International has received reports of increasing human rights abuses against civilians, including internally displaced people. On 13 June 2001 the World Food Programme estimated the number of recently displaced people from Lofa Country to be around 40,000. Many people fleeing their homes have reportedly been turned back at checkpoints by the security forces on suspicion that dissidents were among them. Humanitarian agencies have frequently been denied access to internally displaced people or intimidated and threatened by the security forces while providing assistance or transferring displaced people. Camps for the internally displaced have been established in locations which many observers in Liberia believe to be too close to the areas affected by fighting. The strong presence in the camps of security forces responsible for human rights violations, such as the Anti-Terrorist Unit, has been a cause of concern for many civilians and humanitarian agencies.

The Liberian security forces have reportedly continued to recruit child soldiers, including from among internally displaced people. There have also been reports of people being subjected to beatings or torture by government forces when they have resisted recruitment. During 2000 the RUF reportedly carried out recruitment in camps for Sierra Leonean refugees in Liberia, including of former child soldiers who had previously been recruited by the RUF in Sierra Leone. Senior Liberian government officials were reportedly seen accompanying RUF personnel during the recruitment in refugee camps.

In some cases, Liberian refugees repatriated from Guinea have been arrested and tortured by Liberian security forces. On 14 June 2000 at least seven Liberian refugees from the Mandingo ethnic group, who had been repatriated from Guinea by UNHCR, were arrested by Liberian security forces at the Ganta border post, Nimba County. They were detained and tortured for two weeks and at least one of them reportedly died in custody.

There are no signs that the situation in northern Liberia will improve in the near future. The number of newly displaced people is likely to continue to increase. The UN Secretary-General, in his report of 23 May 2001, stated his deep concern that "the present fighting will result in tens of thousands of refugees and internally displaced persons to whom aid agencies would have no access" (paragraph 6). It is clear that refugees returning to Liberia now would be at serious risk of human rights violations and that no one should therefore be forced or encouraged to return.

Sierra Leone

By early June 2001 more than 55,000 Sierra Leonean refugees in Guinea had risked spontaneously returning to Sierra Leone; others are still returning. UNHCR has not promoted return to Sierra Leone because conditions are not yet conducive for repatriation. However, faced with very large numbers of refugees wishing to return, UNHCR has adopted a policy of facilitating that return. Around 35,000 refugees have returned by boat, assisted by UNHCR and the International Organization for Migration (IOM), an intergovernmental organization. As most of these refugees were originally from areas in northern and eastern Sierra Leone still under the control of the RUF, they are being resettled in areas in the west and south of the country.

At least 20,000 refugees have returned on foot from Guinea through RUF-held areas. Having been victims of attacks by armed political groups, Guinean security forces and Guinean civilians, many of those crossing the border into Kono and Kailahun Districts in eastern Sierra Leone have faced further abuse from the RUF. Women and girls have been raped, some of them abducted, and children have been forcibly recruited to fight or work in the diamond fields. Some Guinean civilians who have fled into RUF-held areas to escape attacks in Guinea, or who have been abducted by RUF forces, have faced the same abuses at the hands of the RUF. In addition, thousands of Liberian civilians and Sierra Leonean refugees in Liberia have fled into Sierra Leone, many into RUF-held areas, to escape increased human rights abuses and intense fighting in northern Liberia since February 2001.

If they succeed in reaching safe areas after passing through Kono and Kailahun Districts, returning refugees are resettled in camps or integrated into temporary settlements within local communities. **It appears, however, that large numbers of returning Sierra Leonean refugees and Guinean and Liberian refugees remain in RUF-held areas. The RUF is reported to have prevented many people from leaving, in an attempt to encourage humanitarian agencies to provide assistance to civilians in the area, apparently in the belief that RUF combatants would also benefit.**

The UN Mission in Sierra Leone (UNAMSIL), the UN peace-keeping operation in Sierra Leone, UNHCR and humanitarian agencies have only recently obtained limited access to some RUF-held areas. The number of civilians in these areas and the nature of their needs are difficult to estimate but there are likely to be hundreds of thousands of civilians in need of urgent humanitarian assistance. On 12 June 2001, UNHCR announced that it had been able to evacuate 130 Guinean and Liberian refugees from Kailahun District and that the RUF was willing to allow other refugees to leave their areas of control. As they progressively deploy into RUF-held areas, UNAMSIL peace-keeping troops must also fulfil their mandate to protect civilians from further human rights abuses.

The human rights abuses and the general failure of refugee protection in Guinea have forced very large numbers of refugees to return to Sierra Leone. Many of the Sierra Leonean refugees interviewed by Amnesty International in March and

April 2001, both in Guinea and after their return to Sierra Leone, expressed a strong desire to return to Sierra Leone. They felt that Guinea had become as dangerous as Sierra Leone. It is clear, however, that refugees who have no option but to return overland into Sierra Leone risk again falling victim to the human rights abuses which they had fled. The spontaneous return of refugees to Sierra Leone under these circumstances cannot be considered voluntary; it is rather the least worst option for the refugees.

In February 2001 the UN High Commissioner for Refugees, Ruud Lubbers, advocated a "humanitarian passage and possible safe return routes" for Sierra Leonean refugees, including through RUF-held areas.⁽²⁾ A UNHCR report on this issue stated that: "To implement the safe passage concept in Sierra Leone, a formal commitment of both the Government and the RUF is necessary. [...] For the RUF, a public statement would be deemed sufficient."⁽³⁾

However, given the scale of abuses by the RUF and its previous failure to fulfil public commitments to end these abuses, Amnesty International would not consider any future commitment by the RUF to be a sufficient guarantee that repatriation can take place in safety and dignity, as demanded by international standards of voluntary repatriation.

Amnesty International supports the view of the UN Secretary-General in his report of 23 May 2001 that "the conditions for the immediate return of all refugees to Sierra Leone do not exist" (paragraph 23). UNHCR and the governments of Guinea, Liberia and Sierra Leone should not encourage or force return to Sierra Leone, particularly overland and through RUF-held areas. Repatriation should not be imposed under any circumstances unless there has been a fundamental and lasting change of conditions in Sierra Leone. A decision on repatriation should be based on an independent and impartial assessment of the human rights situation in all parts of Sierra Leone by UNHCR, international human rights agencies and mechanisms, non-governmental organizations and refugees themselves.

UNHCR has a responsibility to ensure that refugees have the best possible information about the situation throughout their country of origin and about other options available to them, such as relocation or resettlement. Amnesty International welcomes the fact that UNHCR is increasing its efforts in this regard and urges UNHCR and the international community to ensure that refugees are able to make a free and informed choice on whether to return and are not put under undue pressure in this regard.

Civilians in RUF-held areas in northern Sierra Leone have suffered human rights abuses by both the RUF and by Guinean security forces. In response to the increased tensions and fighting within the region, the Guinean security forces mounted aerial military operations and incursions by ground troops into Sierra Leone, in particular in Kambia District in Northern Province, until the end of May 2001 an RUF-held area. Attacks by helicopter gun-ships resulted in large numbers of civilian deaths and injuries and massive destruction of civilian property. This, compared with few RUF casualties or damage to its bases or equipment, indicates that the attacks were indiscriminate and disproportionate.

Civilians in these areas also remained at risk of abuses by the RUF. Some 30,000 civilians from Kambia District fled and became internally displaced in the Lungi peninsular, southwest of Kambia District and to the north of Freetown. Following an agreement with the Sierra Leone government in May 2001, the RUF began to disarm and withdraw from Kambia District. The Sierra Leone Army has

begun to deploy in the area and attacks by Guinean security forces across the border have since ceased.

Refugees returning to Sierra Leone from Guinea and Liberia join the massive existing population of internally displaced people. Up to a million people remain internally displaced in Sierra Leone. At periods during the 10-year internal armed conflict the number of internally displaced people has exceeded even this figure. Since January 2001 the government, assisted by the UN Office for the Coordination of Humanitarian Affairs (OCHA), IOM and international non-governmental organizations, has begun to organize the relocation of internally displaced people from designated "safe areas".⁽⁴⁾ The aim is to reintegrate the internally displaced population into local communities and reduce dependency on humanitarian assistance. OCHA reported that 40,500 people had been relocated from camps to their own communities or other "safe areas" by early May 2001.

Conclusions

The outbreak of hostilities in the border areas between Guinea, Liberia and Sierra Leone had long been predicted. However, for several months from September 2000, several hundred thousand refugees in Guinea were left without humanitarian assistance. Very little action was taken to protect civilians from widespread human rights abuses. Despite intensive efforts by humanitarian agencies during 2000 and 2001, the international community as a whole was slow to react. In particular, UNHCR in Guinea was not provided with the financial or political support necessary to implement its protection mandate effectively. UNHCR's fulfilment of this mandate was further compromised by an optimistic view of the political developments in the region and its hope to be able to promote mass repatriation to Liberia and Sierra Leone during 2000.⁽⁵⁾

This human rights crisis is clearly regional and therefore requires regional solutions, as acknowledged in the report of a UN inter-agency visit to West Africa in March 2001.⁽⁶⁾ However, it has in part arisen due to the failure of governments and the international community to address effectively the massive human rights abuses committed in Liberia and Sierra Leone over the past decade and the continuing abuses in these countries and Guinea. The crisis is a dramatic illustration of the consequences of allowing impunity for those abuses to flourish unchecked.

For example, Sierra Leonean refugees who sought safety in Guinea have since September 2000 experienced similar abuses to those they fled, often at the hands of the same RUF forces. The Lomé peace agreement signed by the Sierra Leone government and the RUF in July 1999 granted a blanket amnesty for all actions undertaken in pursuit of the conflict, including gross human rights abuses. Although following the collapse of that agreement in May 2000, the UN Security Council decided in August 2000 to establish a Special Court for Sierra Leone to try those most responsible for the most serious human rights abuses, its creation has been delayed and threatened by lack of commitments for funding from UN member states.⁽⁷⁾ Furthermore, human rights abuses committed since the signing of the 1999 peace agreement do not fall under the blanket amnesty; those responsible for such abuses therefore can, and should, be brought to justice in the national courts or the Special Court, once it is established.

The international community has failed to take its full share of the responsibility of protecting and assisting refugees in the region, especially in providing adequate support and resources to the Guinean authorities, in accordance

with the principle of responsibility-sharing, and to UNHCR. The UN Secretary-General, in his report of 23 May 2001, states that Guinea in particular "has provided hospitality to refugees for a long time and shared precious and often scant resources with them. [...] [I]t should be noted that the contributions received for the [UN] consolidated appeal for West Africa amount to only 8 per cent [of the total requested]" (paragraphs 22 and 27).

The location of refugee camps close to the border in Guinea has also contributed significantly to the enormous scale of the human rights crisis. Under international refugee law, the Guinean authorities are obliged to protect refugees and ensure the civilian and humanitarian nature of refugee camps. International standards urge states to strive to keep camps away from border areas, but the Guinean government failed to respect this, despite some efforts made by UNHCR and strong criticism on this issue as well as other protection concerns voiced by human rights and humanitarian organizations.⁽⁸⁾

Recommendations

Governments and armed political groups in the region have a primary responsibility to end this human rights crisis. The international community must also increase its efforts to meet the protection and humanitarian needs of civilians, including refugees and internally displaced people. In particular this should be by ensuring that UNHCR and humanitarian agencies have the necessary resources to carry out their work and are able to do so in safety.

The international community, in particular the UN and its agencies, has recently taken steps to address the situation of refugees and internally displaced people in Guinea, Liberia and Sierra Leone. The report of the UN inter-agency visit to West Africa in March 2001 and the UN Secretary General's report of 23 May 2001 contain important recommendations in this regard, many of which Amnesty International supports and some of which are reiterated below, in addition to the organization's own recommendations.

Amnesty International has itself repeatedly made recommendations to governments and armed political groups in the region, and to the international community for ensuring an immediate end to violations of international human rights, humanitarian and refugee law. Recommendations made in this report complement and reinforce those and are aimed at the specific nature of the current human rights crisis for refugees and the internally displaced.

Recommendations to the government of Guinea:

- give clear instructions from the highest levels of government to all government forces that human rights violations will not be tolerated and those responsible will be brought to justice, and that international human rights standards and humanitarian and refugee law must be scrupulously observed;
- investigate all reports of human rights abuses promptly, effectively, thoroughly and impartially, and bring to justice those responsible in trials which comply with international standards of fairness and which exclude the use of the death penalty;

- ensure that refugees are not deliberately targeted, including by providing comprehensive training for all security forces in international refugee law and human rights standards on the treatment of refugees;
- ensure that refugees and internally displaced people are protected from human rights abuses and are allowed to move to safer areas within the country or to leave the country without harassment or intimidation by the security forces;
- ensure unhindered and safe access for humanitarian agencies to all areas;
- observe scrupulously the principle of *non-refoulement*;(9) allow those in need of international protection to cross the borders into Guinea; and neither encourage nor force the return of refugees to Liberia or Sierra Leone unless and until all conditions for repatriation are met;
- maintain the civilian character and humanitarian nature of refugee camps in a manner which respects the rights of refugees; and ensure that all camps are located in suitable and safe sites at a reasonable distance from borders;
- implement fully international standards relating to refugees and internally displaced people, in particular the UN Convention relating to the Status of Refugees and the UN Guiding Principles on Internal Displacement;
- end any military support to armed political groups where this contributes to human rights abuses, including by ending the trade in diamonds from RUF-held areas of Sierra Leone.

Recommendations to the government of Liberia:

- give clear instructions from the highest levels of government to all government forces that human rights violations will not be tolerated and those responsible will be brought to justice, and that international human rights standards and humanitarian and refugee law must be scrupulously observed;
- investigate all reports of human rights abuses promptly, effectively, thoroughly and impartially, and bring to justice those responsible in trials which comply with international standards of fairness;
- provide comprehensive training for all security forces in international human rights and refugee law standards on the treatment of refugees;
- ensure that refugees and internally displaced people are protected from human rights abuses and are allowed to move to safer areas within the country or to leave the country without harassment or intimidation by the security forces;
- ensure unhindered and safe access for humanitarian agencies to all areas;
- observe scrupulously the principle of *non-refoulement*; allow those in need of international protection to cross the borders into Liberia; and neither encourage nor force the return of refugees to Sierra Leone unless and until all conditions for repatriation are met;

- maintain the civilian character and humanitarian nature of refugee camps in a manner which respects the rights of refugees and ensure that all camps are located in suitable and safe sites at a reasonable distance from borders;
- prevent the recruitment of children under the age of 18 into the armed forces and ensure the immediate demobilization and rehabilitation of child combatants currently serving in all the forces fighting on behalf of the government;
- make clear to all government forces that no one should be subjected to human rights violations on account of their refusal to be recruited into the military; any reports of such activities should be the subject of independent and impartial investigations and anyone found to be responsible should be brought to justice in trials which comply with international standards of fairness;
- implement fully international standards relating to refugees and internally displaced people, in particular the UN Convention relating to the Status of Refugees and UN Guiding Principles on Internal Displacement;
- end any military support to armed political groups where this support contributes to human rights abuses, including by ending the trade in diamonds from rebel-held areas of Sierra Leone.

Recommendations to the government of Sierra Leone:

- observe scrupulously the principle of *non-refoulement*, allow those in need of international protection to cross the borders into Sierra Leone and neither encourage nor force the return of refugees from Guinea and Liberia to Sierra Leone unless and until all conditions for repatriation are met;
- ensure that the protection and humanitarian needs of refugees and internally displaced people and those returning home continue to be monitored and are fully met, including by fully implementing international standards relating to refugees and internally displaced people, in particular the UN Convention relating to the Status of Refugees and UN Guiding Principles on Internal Displacement;
- ensure that the relocation of internally displaced people within Sierra Leone takes place in safety and dignity;
- ensure that any relocation of internally displaced people by the authorities is only carried out after a thorough and impartial assessment that the human rights situation throughout the designated area will remain stable over the long term; and ensure that the best possible information about the situation is made available to internally displaced people;
- provide comprehensive training for all security forces in international human rights and refugee law standards on the treatment of refugees;
- investigate all reports of human rights abuses promptly, effectively, thoroughly and impartially, and bring to justice those responsible in trials which comply with international standards of fairness and which exclude the use of the death penalty.

Recommendations to the leaders of armed political groups operating in Guinea, Liberia and Sierra Leone:

- give immediate and clear instructions from the highest levels of leadership and command to all combatants that human rights abuses against civilians will not be tolerated and condemn publicly breaches of international humanitarian law;
- remove any combatant suspected of human rights abuses against civilians from situations where abuses might recur;
- end immediately the abduction of civilians, release all civilians currently held as captives, including women and children, and release all children who have been used as combatants or in any way associated with fighting forces;
- ensure unhindered and safe access for humanitarian agencies to all areas.

Recommendations to UNHCR:

- ensure that the protection and humanitarian needs of refugees in the region are fully met and that any spontaneous returns take place in safety and dignity;
- continue to work to ensure that all camps are located at a reasonable distance from borders, including by urgently relocating Liberian refugees in areas around Macenta and Nzérékoré in Guinea to safer areas away from borders;
- maintain the civilian character and humanitarian nature of all refugee camps; ensure that the new camps are established in suitable and safe sites and in such a manner that all refugees are adequately protected and registered and that the protection needs of women, children and vulnerable groups are fully met, including by consulting refugees, in particular women, on their protection and assistance needs;
- seek to ensure that all refugees and those returning to Sierra Leone are adequately registered so that they can access protection in Guinea and Sierra Leone, including by allowing those who no longer have identity documents to register again;
- ensure that all refugees have the best possible information about the situation in their country of origin and about other options available to them, such as relocation or resettlement;
- increase UNHCR capacity to identify individuals at risk in their country of refuge and to refer such cases for resettlement;
- continue not to promote voluntary repatriation of refugees, particularly overland and through RUF-held areas, until there is an independent and impartial assessment that there has been a fundamental and lasting change of the human rights situation in Liberia and Sierra Leone; ensure that all governments in the region adhere to the principle of *non-refoulement*;
- use all available influence to bring pressure to bear on all parties involved, particularly those governments or armed political groups with whom UNHCR has contact, to end human rights abuses against refugees and violations of international refugee protection principles.

Recommendations to the international community:

- ensure that the responsibility for protecting and assisting refugees is fully shared and is not left to rest solely with the governments of the region, particularly Guinea;
- provide adequate financial and political support for UNHCR to implement its protection mandate effectively throughout the region;
- ensure that refugees and internally displaced people who have been victims of human rights abuses, in particular rape and other forms of sexual violence, are provided with sustained and adequate assistance, including psycho-social care;
- assist the governments of the region in providing comprehensive training for all security forces in international human rights and refugee law standards on the treatment of refugees;
- ensure that refugees are able to make free and informed choices on whether to return to their country and are able to do so in safety and dignity, and that the principle of *non-refoulement* is strictly adhered to by all governments;
- ensure that internally displaced people are not coerced or forced to return to areas where they might be at risk of serious human rights violations and that the UN Guiding Principles on Internal Displacement are fully respected;
- ensure that UNAMSIL peace-keeping troops have the necessary authority, training and logistical support to fulfil vigorously their mandate to protect civilians from human rights abuses in Sierra Leone;
- increase capacity for resettlement of individuals identified to be at risk by UNHCR and other agencies and human rights organizations;
- use all available influence to bring pressure to bear on all parties to end human rights abuses;
- act promptly to end impunity for human rights abuses in Guinea, Liberia and Sierra Leone, particularly through supporting and developing domestic criminal justice systems so that those responsible for crimes involving human rights abuses can be brought to justice in trials which comply with international standards of fairness;
- establish an independent and impartial human rights monitoring presence in the whole region, with clear authority to monitor respect for the basic human rights of the civilian population, including refugees and internally displaced people;
- take effective measures to prevent arms transfers and other military assistance to the region where this could contribute to serious human rights abuses, including by ending the trade in diamonds from rebel-held areas of Sierra Leone.

(1) S/2001/513, Report of the Secretary-General on the issue of refugees and internally displaced persons pursuant to resolution 1346 (2001), 23 May 2001, paragraph 3

- (2) UNHCR press release, *Lubbers explains proposal for humanitarian access to refugees in Guinea*, 14 February 2001
- (3) Report on UNHCR's policy and application of "safe access to refugees" and "safe passage for refugees" in the Guinea/Sierra Leone emergency operations, 27 February 2001
- (4) According to the Resettlement Strategy of the governmental National Commission for Reconstruction, Resettlement and Rehabilitation of December 2000, the criteria to be taken into consideration when designating a safe area are: absence of hostilities, ongoing disarmament, law and order maintenance by the police, security maintenance by UNAMSIL, unhindered access for humanitarian agencies and government staff, sizeable spontaneous returns of displaced persons to the area and presence of local and district administration.
- (5) See UNHCR's *Global Appeal 2000: Strategies and Programmes* which presented UNHCR's estimates that more than 107,000 Sierra Leoneans and 37,000 Liberians would repatriate during 2000. The human rights crises in Sierra Leone in May 2000 and in Guinea in September 2000 thwarted these plans.
- (6) S/2001/434, Letter dated 30 April 2001 from the Secretary-General addressed to the President of the Security Council
- (7) See *Sierra Leone: the international community's resolve to end impunity must be strengthened*, 24 April 2001 (AI Index: AFR 51/003/2001)
- (8) See, among others, the 1999 Human Rights Watch report *Forgotten Children of War: Sierra Leonean Refugee Children in Guinea*
- (9) *Non-refoulement* is the principle according to which states are obliged not to return a person to a country where he or she would risk serious human rights violations.